

APPLEBY

Dated 05 July 2024

- (1) **MARK RICHARD SHUTTLEWORTH**
- (2) **OCORIAN TRUST (ISLE OF MAN) LIMITED**

FOUNDATION RULES

Relating to the Shuttleworth Botanic Garden Foundation established in the Isle of Man on 08 July 2024

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THE SHUTTLEWORTH BOTANIC GARDEN FOUNDATION

FOUNDATION RULES

1. DEFINITIONS AND INTERPRETATION

- 1.1 In the Foundation Instrument and these Rules, unless the context requires otherwise, the following definitions and rules of interpretation apply:

the Act: the Foundations Act 2011 of the Isle of Man, as amended from time to time, including any replacement legislation;

Beneficiary: the persons specified in clause 18 of these Rules and any other person or class of persons added to the class of Beneficiaries pursuant to the terms of that clause and **Beneficiary** means any one of the Beneficiaries;

benefit shall be given the widest possible interpretation;

business address: insofar as it refers to that of the Foundation, the business address in the Isle of Man of the Registered Agent or, if there is no such Registered Agent, its last Registered Agent then alive or in existence, in each case as it appears in the register;

charitable: exclusively charitable under the law of the Isle of Man and **charity** means any company, body or trust established for charitable purposes;

connected:

- (a) insofar as it relates to an individual: a person who is a spouse, parent, descendant, employee, employer or agent of that individual; and
- (b) insofar as it relates to a company: a person who is (directly or indirectly) its beneficial owner, holding company or subsidiary or a company which is a subsidiary of its holding company or who is a director, officer, employee or agent of any of the foregoing or of the company itself;

Council: the Council constituted in accordance with the terms of clauses 5 and 6 below in compliance with section 8 of the Act;

Enforcer: the person or persons for the time being appointed to be the Enforcer pursuant to clause 14 below;

the Foundation: the Shuttleworth Botanic Garden Foundation established on the application of a Registered Agent in compliance with section 4 of the Act on 08 July 2024 ;

Foundation Instrument: the Foundation Instrument of the Foundation provided to the Registrar at the time of application for establishment of the Foundation (and thereafter as it may be from time to time);

Founder: the person named in clause 3;

incapacity: incapacity caused by physical or mental handicap or deterioration resulting in the individual whose incapacity is being judged being unable to manage their own affairs or to understand the nature or consequences of their actions, as confirmed by the written opinion of two medical practitioners qualified to assess such matters, and incapacity shall also mean any legal incapacity deriving from age or insolvency or otherwise including due to kidnapping or other events or circumstances of war or terrorism whereby a person is unable to fulfil their functions as are required of them under these Rules or is acting under the undue influence of any person, and **incapacitated** shall have a corresponding meaning;

Member: a person who is appointed to be a member from time to time of the Council pursuant to the provisions of clauses 5 and 6 below;

Minor: an individual who has not attained the age of 18 years;

Objects: the objects of the Foundation as stated in clause 2 below;

Person: includes both individuals and legal entities and bodies whether corporate or unincorporated;

the Power Holder: the person for the time being holding the powers under clause 4 below;

property: has, as regards property of the Foundation, the same meaning as **assets** for the purposes of the Act and, for this purpose, all income and profits from such property shall be capitalised;

register and **Registrar:** have the meanings attributed to them by the Act;

Registered Agent: the person for the time being appointed as Registered Agent of the Foundation for the purposes of the Act;

these Rules: the rules of the Foundation as amended from time to time; and

spouse: includes a civil partner and a person is a **surviving spouse** whether or not they have remarried or entered into another civil partnership.

- 1.2 Words denoting the singular include the plural and vice versa and a reference to one gender includes the other gender.
- 1.3 Reference to a clause or a schedule is a reference to a clause or a schedule in these Rules.
- 1.4 The table of contents and the headings in these Rules are for convenience only and shall not affect the construction or interpretation.

2. OBJECTS OF THE FOUNDATION

2.1 The Objects are as follows:

- (a) to develop and maintain a botanic garden in the Isle of Man that conforms, to the greatest extent possible, to the accreditation standards (as may be amended from time to time) of Botanic Gardens Conservation International, the fundamental components of which are –
- leadership and strategic direction
 - open to the public
 - collections management
 - public engagement
 - horticulture
 - research capacity
 - conservation activities
 - sustainability and ethics
 - specialist staff expertise
 - network membership; and
- (b) to hold, pay or apply property to or for the benefit of the Beneficiaries as the Foundation shall think fit.

3. FOUNDER

- 3.1 The Founder is Mark Richard Shuttleworth of Mallards, Ballavale Road, Santon, IM4 1EH, Isle of Man.
- 3.2 The Founder has made an initial dedication of property to the Foundation, the details of which are set out in Schedule 1 below.

4. THE POWER HOLDER

- 4.1 The Founder shall be the first Power Holder.
- 4.2 The rights and powers conferred on the Founder as Power Holder by sub-clause 4.3 are in addition to any other rights and powers concerning the Foundation conferred upon the Founder by these Rules or by the Act.
- 4.3 The Power Holder has the following rights and powers:
- (a) with the written consent of the Enforcer, to direct that the Foundation be wound up in accordance with the provisions of clause 26 below;

- (b) to convene, attend and address meetings of the Council;
- (c) with the written consent of the Enforcer, to appoint and remove Members by instrument in writing in accordance with the provisions of clause 6 below;
- (d) with the written consent of the Enforcer, to appoint and remove Beneficiaries by instrument in writing in accordance with the provisions of clauses 18 and 19 below; and
- (e) to appoint and remove Enforcers by instrument in writing in accordance with the provisions of clause 14 below.

4.4 The Power Holder may assign his rights and powers under this clause 4 by instrument in writing executed by the Power Holder and the assignee and delivered to the business address of the Foundation. The assignee, upon such assignment taking effect, becomes the Power Holder in place of the previous holder of that office. Subject to that, following the death, incapacity, liquidation or other cessation of existence of a Power Holder without any assignment of that office, or if at any time there is for any reason no Power Holder, any power or discretion which is expressed to be subject to the consent of the Power Holder shall be exercisable free from that requirement and the powers and functions conferred on the Power Holder in these Rules shall be exercisable by the Council.

4.5 A person shall ipso facto and immediately cease to be the Power Holder:

- (a) in the case of an individual:
 - (i) in the event of his death or incapacity;
 - (ii) if he is convicted of an offence which carries with it the possibility of a term of imprisonment of two years or more; or
 - (iii) if he commits an act of bankruptcy for the purposes of the Bankruptcy Code 1892;
- (b) in the case of a company, it enters into liquidation or dissolution whether compulsory or voluntary (not being merely a voluntary liquidation for the purpose of amalgamation or reconstruction);
- (c) in either case on resignation by notice in writing delivered to the business address of the Foundation.

5. **THE COUNCIL**

- 5.1 The Foundation shall at all times have a Council who shall administer the property of the Foundation and carry out the Objects in accordance with the Act and these Rules.
- 5.2 The number of Members of the Council shall not be less than two.
- 5.3 Upon the establishment of the Foundation the first Members of the Council shall be:

- (a) Andrew James Inglis of Ballachrink Cottage, Old Castletown Road, Santon, IM4 1HD, Isle of Man; and
- (b) Malcolm Couch of Primrose Lodge, Athol Park, Port Erin, IM9 6ES, Isle of Man.

6. APPOINTMENT, RESIGNATION AND REMOVAL OF COUNCIL MEMBERS

- 6.1 The Power Holder may, with the written consent of the Enforcer, appoint new or additional Members by instrument in writing. If there is no Power Holder, the Council or, if none, the personal representatives or liquidator (as the case may be) of the last remaining Member may appoint new or additional Members by instrument in writing. The person making such appointment may agree with the appointee such terms (including remuneration) as they may think fit, subject to the requirements of these Rules and the general law.
- 6.2 Any person (including a Beneficiary) may be appointed to be a Member provided that such person:
 - (a) if an individual, has attained the age of 18 years and is not incapacitated; and
 - (b) is not disqualified from being a member of the council of foundations or a director of companies by any order made in accordance with the Act or any other law or enactment of the Isle of Man.
- 6.3 The appointment of any Member is subject to their acceptance in writing delivered to the business address of the Foundation.
- 6.4 A person shall ipso facto and immediately cease to be a Member:
 - (a) in the case of an individual:
 - (i) in the event of his death or incapacity;
 - (ii) if he is convicted of an offence which carries with it the possibility of a term of imprisonment of two years or more;
 - (iii) if he is absent for a period of more than twelve consecutive months without the consent of the other Members (if any) from meetings of the Council held during that period; or
 - (iv) if he commits an act of bankruptcy for the purposes of the Bankruptcy Code 1892;
 - (b) in the case of a company, it enters into liquidation or dissolution whether compulsory or voluntary (not being merely a voluntary liquidation for the purpose of amalgamation or reconstruction);
 - (c) in either case:

- (i) on resignation by notice in writing delivered to the business address of the Foundation; or
- (ii) on receipt of a notice of removal from office as a Member in accordance with these Rules.

6.5 Without prejudice to paragraph 6.4(c), if a Member wishes to resign as a Member and there would be insufficient or no other Members remaining on the Council, and the person who has the power of appointing Members has, after receiving due notice from the Member wishing to resign, failed for a period of sixty days following receipt of such notice to appoint a Member to replace him, then the Member himself wishing to resign shall be entitled by instrument in writing to appoint a new Member in his place.

6.6 The Power Holder may, with the written consent of the Enforcer, remove any Member from office by instrument in writing delivered to the Member being so removed and the business address of the Foundation.

7. REMUNERATION OF COUNCIL MEMBERS

7.1 A Member is entitled to reasonable remuneration for his work done for or services provided to the Foundation (either by him or by any firm or company in which he is interested, acting in the course of a business or profession). Any such remuneration shall be paid by the Foundation.

7.2 Members shall be entitled to be reimbursed by the Foundation for all travelling, accommodation and other expenses, liabilities and disbursements properly incurred in connection with the discharge of their functions as Members and such expenses liabilities and disbursements shall be deemed to be included in the reasonable expenses to which Members are (without limitation) entitled by virtue of the provisions of the Act.

7.3 Though personally interested or owing a duty to another person that potentially conflicts with his duties to the Foundation, any Member acting in good faith may:

- (a) contract or enter into any commercial financial or other transaction of any nature with the Foundation or any company or partnership or body any of whose shares or interests directly or indirectly contribute to or form part of the assets of the Foundation;
- (b) be engaged or employed or appointed in any capacity by the Foundation or any person connected with the Foundation or having any interest whether direct or indirect in the assets of the Foundation;
- (c) act as director, officer, partner or employee of any company partnership or body any of whose shares or interests directly or indirectly contribute to or form part of the assets of the Foundation; and
- (d) be the director, trustee, adviser, manager or officeholder of any kind whatever of an investment vehicle, entity or arrangement in receipt of income, capital, property or benefit whatever out of the property of the Foundation,

and shall not be bound or liable in any way or to any extent to account for any reasonable fees, commission, profit, remuneration or benefit whatever made or derived therefrom or in connection therewith. The Council may at any time and from time to time in its discretion enter into any arrangement, agreement or transaction with any company, partnership, trust or other foundation notwithstanding that one or more of Members may also be or have been a director of such company, partner in such partnership, trustee of such trust or member of the council of such other foundation.

8. POWERS OF THE COUNCIL

8.1 Subject to the provisions of the Act and these Rules, the business of the Foundation shall be managed by the Council who may exercise all the powers of the Foundation. A meeting of the Members at which a quorum is present may exercise all powers exercisable by the Council.

8.2 The Council shall exercise the powers conferred on it by the Foundation Instrument and these Rules in order to carry out the Objects and, in so doing, shall not be constrained or limited in any way provided that the Council's powers may not be exercised in a manner which would conflict with the Objects or infringe any restrictions imposed by the Foundation Instrument or these Rules.

8.3 The Council may exercise its powers as it shall think most expedient in carrying out the Objects and, in so doing:

- (a) may favour any Object to the exclusion of any other Object without any obligation to be impartial or even-handed; and
- (b) may act in the interest or to the advantage of any Beneficiary to the exclusion of and without any obligation to consider any other Beneficiary.

8.4 The Council may, by power of attorney or otherwise, appoint any person (including a Member) to be the agent of the Council with authority to exercise all or any of the powers of the Council (including this power of delegation) or to carry out any or all of the functions of the Council on such terms (including as to remuneration) as the Council thinks fit.

8.5 The Council may delegate any of its powers to any committee consisting of at least one Member and (if thought fit) one or more other persons provided that a majority of that committee comprises Members of the Council. Subject to any such conditions, the proceedings of a committee so constituted shall be governed by these Rules dealing with the proceedings of the Council as far as they are capable of applying.

8.6 The Council may consult with, instruct, commission, engage or employ any person in connection with any matter whatever relating to the Foundation on such terms (including as to remuneration) as the Council thinks fit.

9. PROCEEDINGS AND DECISIONS OF THE COUNCIL

9.1 Subject to the provisions of the Foundation Instrument and these Rules, the Council may regulate its proceedings as it thinks fit.

- 9.2 Any Member may (without prejudice to any right of any person to do so under any other provision of these Rules) call a meeting of the Council. Issues arising at a meeting shall be decided by a majority of votes. In the event of equality of votes, the Chairperson (appointed as below) shall have a casting vote.
- 9.3 The quorum for the transaction of the business of the Council may be fixed by the Council and unless so fixed at any other number shall be two.
- 9.4 The Council may appoint one of their number to be the Chairperson of the Council and may at any time remove the Member so appointed from that office; unless the Member is unwilling to do so, the Member so appointed shall preside at every meeting of Members at which he is present.
- 9.5 A resolution in writing signed by all Members entitled to attend a meeting of Members or a committee of the Council shall be valid and effective as if it has been passed at a meeting of the Council duly convened and held and may consist of several documents in like form each signed by one or more Members.
- 9.6 A Member which is a company or incorporated entity may exercise or concur in exercising any discretion or power by a resolution duly passed or may delegate the right and power to exercise or concur in exercising any such discretion or power to one or more persons.

10. COUNCIL MEETINGS

- 10.1 The Council shall meet not less than once in each calendar year; such meetings shall be called by at least 21 days' written notice (or less if consent is given by all Members). The notice shall specify the date, time and place of the meeting and the general nature of the business to be transacted but the accidental omission to give notice of a meeting to, or the non-receipt of notice by, a Member shall not invalidate the proceedings at the meeting.
- 10.2 No business shall be transacted at any meeting unless a quorum is present.
- 10.3 The Members shall cause minutes to be taken and a record of them to be made available to the Members and Registered Agent in paper or electronic form.

11. PROTECTION OF COUNCIL MEMBERS

- 11.1 The Council and each Member shall be entitled to act in reliance on any instrument, direction, consent or notice purporting to have been given or executed by any person and to assume without further enquiry that such person was capable of acting and (if not acting in a personal capacity) duly authorised to act when he executed or gave the same and that the same was a proper exercise of that person's power.
- 11.2 The Council and each Member shall have no duty or liability to obtain or seek to obtain any information or to appoint any representative to supervise, monitor or report on the administration management or conduct of the business or affairs of any company, partnership, venture or project in which the Foundation is or may be interested even though such interest may entitle the Council to exercise effective or substantial control or influence over it or them. The Council may assume that information supplied by any person to it is

accurate and truthful unless the Council has actual knowledge to the contrary and the Council shall be under no duty at any time to take any steps at all to ascertain whether or not the information is accurate and truthful.

- 11.3 The Council may accept, acquire or retain indefinitely all and any property contributed or introduced by or acquired from the Founder or other person, as property of the Foundation, notwithstanding that such property represents the whole or a substantial part of such property and notwithstanding that such property may be stock, shares or other securities in or relating to companies or bodies engaged or introduced in speculative or trading activities or may consist of only one class or type of asset and the Council shall bear no liability in consequence of any such acceptance acquisition or retention.
- 11.4 Where the property of the Foundation for the time being includes any tangible property (real or personal), the Council and each Member shall not be bound to see, or be liable or accountable for omitting, or neglecting to see to the repair or insurance of such property, or to the payment of any outgoings in respect of them.
- 11.5 No Member shall be liable for any loss to the Foundation arising in consequence of the failure, depreciation or loss of any investments made or retained in good faith or any failure to enhance or preserve the income of capital of the Foundation or any part thereof or in consequence of any mistake or omission made in good faith or any other act, matter or thing whatever except fraud, wilful misconduct or gross negligence on the part of the Member who is sought to be made liable and in the case of a corporate Member all references to this clause thereto shall include the directors, officers and employees thereof.
- 11.6 No Member shall be liable in any way whatever for or in consequence of:
- (a) the fraud, misfeasance or incompetence of any delegate or agent appointed or employed by the Foundation or any of the Members in good faith even though such appointment or employment was neither necessary nor expedient; or
 - (b) anything done or omitted to be done in conformity with advice received or purporting to have been given by any investment adviser or manager engaged or consulted by the Foundation or any of the Members in connection with the business and property of the Foundation or the delegation to such adviser or manager of all or any powers and discretions concerning the making varying retention or disposal of investments.
- 11.7 No liability whatever shall be incurred by, and no duty imposed on any Member or the Foundation in relation to the application or use of any property of the Foundation subsequent to or in consequence of the payment, transfer or delivery thereof to or for the purposes of any of the Objects.
- 11.8 No provision of these Rules operates so as to remove the liability of any Member for any loss arising from his fraud, wilful misconduct or gross negligence.

12. INDEMNIFICATION OF COUNCIL MEMBERS

- 12.1 The Members shall be entitled to be indemnified out of the property of the Foundation to the fullest extent permitted by law in respect of all liabilities incurred in connection with the Foundation other than those arising out of the fraud, wilful misconduct or gross negligence of such Member.
- 12.2 A Member resigning or removed from office is entitled to reasonable security by way of indemnity out of the assets of the Foundation for any existing or future liability, loss or expense incurred by him in his capacity as a Member other than liability loss or expense arising out of his own fraud, wilful misconduct or gross negligence.
- 12.3 In addition, and without prejudice to any right whether statutory or otherwise to security for liabilities or to the operation of any lien which may from time to time exist the Council shall have power by instrument in writing at any time:
- (a) to indemnify any former Members from and against any liability of whatever nature to the extent permitted by law and without prejudice to the generality of the foregoing may indemnify any former Members from and against all and any actions, proceedings, accounts, claims and demands (and all and any costs, fees and expenses incurred in connection therewith) which may be brought or made or threatened to be brought or made by any person in connection with the Foundation or in any way relating to it or to its property from time to time whether the same shall be enforceable in law or not and whether or not in respect of a period or event falling wholly or partly after or before the date thereof including any claims or demands arising or made at any time for taxes, duties or other fiscal liabilities by the revenue or other authorities of any government in any part of the world (including interest, penalties, costs, charges and expenses or other sums incurred in connection therewith) on or in respect of the income or capital of the Foundation or in respect of any property transferred by or to or under the control of the Foundation or any of the Objects; and
 - (b) to assign, pledge, charge, hypothecate or otherwise encumber the whole or any part of the income and capital of the Foundation as security for such indemnity in such manner as the Council shall in its discretion think fit,
- provided that there shall be excluded from such indemnity any liability of the former Member in respect of which they would not have been entitled to reimbursement if they had remained an incumbent Member.
- 12.4 Any insurance purchased and maintained by the Foundation in respect of a Member or delegate of a Member or any other person appointed to act or purporting to have been appointed to act on behalf of the Foundation shall not include any liability he may have to the Foundation itself or be used to pay a fine in respect of any offence or for the costs of defending criminal proceedings in which he is convicted or civil proceedings brought by the Foundation in which judgment is given against him.

13. THE REGISTERED AGENT

- 13.1 The Foundation shall at all times have a Registered Agent (but may have no more than one at any time).
- 13.2 The initial Registered Agent of the Foundation is Ocorian Trust (Isle of Man) Limited of 33-37 Athol Street, Douglas, IM1 1LB, Isle of Man.
- 13.3 The Registered Agent:
- (a) shall be authorised to act as a registered agent for the purposes of the Act;
 - (b) is the registered agent for the purposes of the Act;
 - (c) may (but need not) be a Member;
 - (d) shall comply with the requirements of the Act insofar as they apply to him as registered agent; and
 - (e) is entitled to charge (in addition to being indemnified from the property of the Foundation in respect of all properly incurred expenses and liabilities) such reasonable amounts as it determines for work done for, and services provided to, the Foundation.
- 13.4 The Council may in writing appoint and remove the Registered Agent as they think fit provided that there shall be no more than one Registered Agent in office at any time and any person so appointed shall satisfy the criteria for such appointment set out in the Act.
- 13.5 The Registered Agent may in writing direct the Foundation to appoint a successor Registered Agent to act in its place and, upon receipt of such direction, the Foundation shall promptly take all necessary steps to do so. If the Foundation has not appointed a successor Registered Agent within three months of receiving such direction, the Registered Agent wishing to resign may itself identify and appoint a successor Registered Agent in writing.
- 13.6 The resignation or removal of a Registered Agent shall not take effect until immediately before the appointment of a successor Registered Agent has taken effect.

14. ENFORCER

- 14.1 The Foundation shall at all times have an Enforcer whose primary role and function is to take such steps as may be reasonable in all the circumstances of the case to ensure that the Foundation carries out the Objects.
- 14.2 The first Enforcer is Mark Richard Shuttleworth of Mallards, Ballavale Road, Santon, IM4 1EH, Isle of Man.
- 14.3 The Power Holder or, if there is no Power Holder, the Council may appoint any person to be the Enforcer in succession to the last incumbent or resigning Enforcer by instrument in writing delivered to the business address of the Foundation.

- 14.4 The appointment of any person as an Enforcer is subject to their acceptance in writing delivered to the business address of the Foundation.
- 14.5 A person who is a Beneficiary may also be appointed to be the Enforcer but no person other than the Founder may be both a Member and the Enforcer.
- 14.6 An Enforcer may at any time resign from office by instrument in writing delivered to the business address of the Foundation and such resignation shall have effect upon receipt by the Foundation or upon the occurrence of such later date or event as may be specified in such instrument.
- 14.7 A person shall ipso facto and immediately cease to be an Enforcer:
- (a) In the case of an individual:
 - (i) in the event of his death or incapacity;
 - (ii) if he is convicted of an offence which carries with it the possibility of a term of imprisonment of two years or more; or
 - (iii) if he commits an act of bankruptcy for the purposes of the Bankruptcy Code 1892;
 - (b) in the case of a company, if it enters into liquidation or dissolution whether compulsory or voluntary (not being merely a voluntary liquidation for the purpose of amalgamation or reconstruction);
 - (c) in either case:
 - (i) on removal from office by the Power Holder by instrument in writing delivered to the person being so removed and to the business address of the Foundation; or
 - (ii) if no response has been received from that person to any communication from the Foundation for a period of six months.

15. **REMUNERATION OF ENFORCER**

The provisions of clause 7 relating to entitlement to remuneration and reimbursement of Members shall apply mutatis mutandis to the remuneration and reimbursement of an Enforcer.

16. **AUTHORITY OF ENFORCER**

16.1 The Enforcer shall have power:

- (a) to require the Council to account to the Enforcer for the manner in which it has:
 - (i) administered the Foundation's assets; and
 - (ii) acted to carry out the Objects,

and shall have access to all such documents, minutes, records and accounts as he may require for this purpose; and

- (b) to approve or disapprove and veto any specified actions or proposed actions of the Council; and
- (c) provided the Enforcer is satisfied that:
 - (i) it is in the best interests of the Foundation so to do; and
 - (ii) in taking a specified action the Council has acted or will be acting in good faith,

to sanction or authorise any such action taken or to be taken by the Council notwithstanding that such action is not and would not otherwise be permitted by the Foundation Instrument or these Rules provided further however that the Enforcer considers that it is appropriate so to do.

- 16.2 If the Enforcer, acting under his powers, sanctions or authorises any action of the Council, the Council shall in taking that action be taken for all purposes to have acted in accordance with these Rules.

17. **ENFORCER'S INTEREST AND LIABILITY**

- 17.1 The Enforcer may exercise any power and authority conferred on him by the Foundation notwithstanding that he may or will have an interest in the exercise or outcome of such exercise, may or will directly or indirectly be affected thereby or benefit therefrom or owes a duty to another that may conflict with his duties under the Act.
- 17.2 The Enforcer shall not be liable for any loss or reduction in profit or income and capital of the Foundation arising however by reason of any act or omission made in good faith or of any other matter or thing except fraud, wilful misconduct or gross negligence on his part.

18. **THE BENEFICIARIES**

- 18.1 The Beneficiaries are:
- (a) Mark Richard Shuttleworth of Mallards, Ballavale Road, Santon, IM4 1EH, Isle of Man, who while alive will retain the right to live at a property owned by the Foundation;
 - (b) Claire Lucy Anne Newman of Mallards, Ballavale Road, Santon, IM4 1EH, Isle of Man, who while alive will retain the right to live at a property owned by the Foundation; and
 - (c) such other person, classes of persons, charitable objects, charities and class of charities as the Power Holder, with the written consent of the Enforcer, may at any time and from time to time by instrument in writing revocable or irrevocable add to the class of Beneficiaries (whether or not ascertained or in existence at the time of such addition) provided that no such instrument takes effect until it has been delivered to the business address of the Foundation.

19. REMOVAL OF BENEFICIARIES

19.1 The Power Holder, with the written consent of the Enforcer, may at any time by instrument in writing (revocable or irrevocable) remove any person or charity from the class of Beneficiaries provided that:

- (a) no such instrument takes effect until it has been delivered to the business address of the Foundation; and
- (b) this power may not be exercised so as to deprive a Beneficiary of any property or interest in property to which he has previously become indefeasibly entitled, whether in possession, in reversion or otherwise.

19.2 A Beneficiary may by instrument in writing delivered to the business address of the Foundation:

- (a) irrevocably or revocably disclaim his rights, or any of them, in relation to the Foundation; and or
- (b) declare that he shall either permanently or for such period as is therein stated cease to be a Beneficiary,

with the result that following receipt by the Foundation of such instrument and to the extent specified in such disclaimer or declaration the person making the same shall thereafter cease to be a Beneficiary.

20. FOUNDATION PROPERTY

20.1 Mark Richard Shuttleworth and Claire Lucy Anne Newman, whilst they are Beneficiaries, each have the right to occupy or use properties owned by the Foundation on the following terms:

- (a) The Beneficiary is to pay all outgoings of the relevant property;
- (b) The Beneficiary is to keep the relevant property in good repair and condition; and
- (c) The Beneficiary is to maintain adequate contents insurance for the relevant property when exercising their right to occupy or use a property.

20.2 Whilst a Beneficiary is in occupation of a property owned by the Foundation the Foundation may not, without the written consent of that Beneficiary, sell that property unless, in the reasonable opinion of the Council, the Beneficiary is not capable of giving its consent.

20.3 Subject to sub-clause 20.1, the property of the Foundation shall be at the disposal of the Foundation which may pay or apply the whole or any part of that property in carrying out the Objects on such terms and in such manner as it thinks fit. For these purposes, all income and profits derived from the property of the Foundation shall be capitalised and be applicable in carrying out the Objects.

21. POWERS OF THE FOUNDATION

21.1 The Foundation has all the powers and capacity conferred by the Act and the extent of the Council's capacity and authority to act shall not be limited or constrained in any way other than as provided in these Rules or by any applicable law.

21.2 Without prejudice to the generality of the preceding sub-clause, the Foundation may:

- (a) form companies and other entities and create partnerships and other associations or bodies in any part of the world and transfer property and assets of the Foundation thereto to them without being bound to become in any way whatever involved in or responsible for the administration thereof or the conduct of the business thereof;
- (b) invest and reinvest from time to time or leave uninvested the property and assets of the Foundation as if it were the absolute and unrestrained owner thereof;
- (c) employ agents, managers, nominees, custodians, lawyers, accountants, consultants and advisers of all kinds;
- (d) end with or without security all and any of the property and assets of the Foundation to whomsoever and upon such terms as it thinks fit and forgive compromise or release any debt so created;
- (e) borrow money or other property at any time on such terms as it thinks fit with power to charge any part of the Foundation's property and assets in any manner and without any obligation to limit such borrowing to the value of the financial or commercial commitments of the Foundation;
- (f) guarantee the obligations of any person and give such warranties and indemnities and mortgage, charge, hypothecate or encumber in any way whatever the Foundation's property and assets in such manner and to such extent as it thinks fit; and
- (g) pay such duties, levies, fees, taxes, interest, impositions and penalties as may be or become payable in any jurisdiction notwithstanding that they shall or may not be recoverable from the Foundation itself or any of the Beneficiaries on whose behalf they may be paid.

22. PAYMENTS TO MINORS

If the Council is authorised or intends to pay or transfer any money or other property to or for the benefit of any person who is a minor or otherwise not of full capacity, the Council may pay or transfer it to a parent, guardian, receiver, deputy or curator (as the case may be) of such person without seeing to its application or may apply it in such manner as may be directed in writing by such parent, guardian, receiver, deputy or curator (whose receipt shall be a sufficient discharge to the Foundation for the money or other property so paid, transferred or applied).

23. EXCLUSION OF COMMUNITY OF PROPERTY

No part of the Foundation's property or assets to which any person may become entitled, or which is or may be applied for the benefit of such person, shall become subject to any provision for the

community of property to which in the absence of this provision it would become subject but the same shall be and remain the sole separate and exclusive property of such person and should such person be married or enter into a relationship which engages the principles and rules of community of property then any benefit accruing to such person and any benefit thereafter directly or indirectly acquired by means of the proceeds thereof shall be and remain free from the interference control or marital power or claim of any spouse of such person.

24. WRITTEN COMMUNICATIONS, DOCUMENTS, REGISTERS AND ACCOUNTS

24.1 The Foundation shall include its name, registration number and business address in its written communications (including those transmitted by electronic means).

24.2 The Foundation shall cause to be created and keep at the business address of the Foundation:

- (a) a copy of the Foundation Instrument and these Rules as they are for the time being in force;
- (b) a register showing the names and addresses of the Members of the Council;
- (c) a record of the appointment of the Registered Agent showing the date of his appointment and his name and address;
- (d) a record of the appointment of the Enforcer showing the date of his appointment and his name and address;
- (e) records sufficient to show and explain its transactions (including minutes or meeting of the Council and resolutions of the Council);
- (f) records that disclose, with reasonable accuracy, its financial position; and
- (g) a register of the names and addresses of all dedicators of property to the Foundation.

24.3 The Foundation shall keep reliable accounting records which:

- (a) correctly explain the transactions of the Foundation;
- (b) enable the financial position of the Foundation to be determined with reasonable accuracy at any time; and
- (c) allow financial statements to be prepared.

24.4 The accounting records shall be kept at the business address of the Foundation or at such other place the Council thinks fit. Where the records are not kept at the business address of the Foundation, the Foundation must provide to the Registered Agent a written record of the physical address of the place where the records are kept. Such records shall be preserved for a period of six years from the end of the accounting period to which they relate.

25. NOTICES

- 25.1 Any notice, document, consent or other communication or notice to be delivered to or served on the Foundation or the Council shall be deemed to have been duly delivered or served if the same has been delivered in person or sent by post or electronic mail to the business address of the Foundation.
- 25.2 Except as provided below, any communication in connection with these Rules will be deemed to be given as follows:
- (a) if delivered in person, at the time of delivery;
 - (b) if posted, three days after being deposited in the post, postage prepaid, in a correctly addressed envelope; and
 - (c) if by electronic mail (properly addressed and dispatched to the recipient's electronic address last notified in writing), at the time the electronic notice leaves the information system of the sender.
- 25.3 A communication given under sub- clause 25.2 above but received on a non-working day or after business hours in the place of receipt will only be deemed to be given on the next working day in that place.
- 25.4 To prove service, it is sufficient to prove that that the envelope containing the notice was properly addressed and posted.
- 25.5 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

26. WINDING UP

- 26.1 The Power Holder may, with the written consent of the Enforcer, direct that the Foundation be wound up in accordance with the provisions of this clause.
- 26.2 If the Foundation is wound up and remains possessed of property which is not the subject of a prior determination for distribution, and which exceeds the value of the obligations and engagements incurred or to be incurred by the Foundation prior to or in consequence of the winding up, then such property shall be divided and distributed among and to all or any one exclusive of the others of the Beneficiaries in such proportions (if more than one) and in such manner as the Power Holder may determine.
- 26.3 Subject to sub-clause 26.2, the Foundation shall distribute the Foundation property:
- (a) to such of the Beneficiaries who are individuals and who are living at the time of the winding up and, if more than one, in equal shares; and if none
 - (b) to such of the Beneficiaries who are not individuals and who are in existence at the time of the winding up and, if more than one, in equal shares; and if none,

- (c) to the individuals who would, at the date on which the decision or order is made and becomes binding for the winding-up to be made, be the heirs to the movable estate of the Founder if the Founder had died intestate domiciled in the Isle of Man without leaving a surviving spouse and in the proportions (if more than one) in which such persons would be entitled thereto and subject thereto; and subject to and in default of that,
- (d) for charitable purposes generally.

27. INFORMATION AND CONFIDENTIALITY

- 27.1 Subject to the rights of the Enforcer, the Foundation need not supply a copy of these Rules to any person other than as directed by the Council unless a requirement to do so is imposed by an enactment or ordered by a court of competent jurisdiction.
- 27.2 Subject to the rights of the Enforcer, except as specifically required by an enactment or an order of a court of competent jurisdiction or by the Foundation Instrument or these Rules, the Foundation is not required to provide any person (whether or not a Beneficiary) with any information about the Foundation whether such information is about its assets, the way in which such assets are administered, the administration of the Foundation itself, the way in which it is carrying out or benefiting the Objects or otherwise.
- 27.3 The Council shall be entitled to make such disclosures concerning the Foundation or any property held by or under the control of the Foundation (whether directly or indirectly) including, without limitation, disclosure of any beneficial interests therein and any dealings therein:
 - (a) as the Council may consider necessary or desirable for the proper administration of the Foundation; or
 - (b) as may be properly required by any competent authority or person whether or not such requirement shall have the force of law in the Isle of Man and whether or not the Council may be compelled by law so to do

and including, without prejudice to the generality of the foregoing, any disclosure required under any legislation regulating transactions in securities and any rules of any stock exchange or regulated market or regulatory authority in any place in which any property held by or under the control of the Foundation (whether directly or indirectly) may be situated from time to time.

28. VARIATION

- 28.1 The Power Holder may from time to time by instrument in writing vary (including amend, add to or delete) all and any of the provisions of the Foundation Instrument and these Rules in such manner as the Power Holder may think fit provided that in the event of any such variation being proposed to be made to the provisions of the Foundation Instrument:
 - (a) notification of any variation shall be given to the Registrar in accordance with the provisions of the Act; and

- (b) the proposed Foundation Instrument as varied shall not take effect as the Foundation Instrument of the Foundation until the Registrar has entered the Foundation Instrument in the register and dated the entry.
- 28.2 No variation to the Foundation Instrument or these Rules shall invalidate any prior act of the Council which would have been valid if that variation had not been made.
- 28.3 The details of any further dedication of property to the Foundation may (to the extent that an amendment to these Rules is required to be made as a result, whether under these Rules or the general law) be recorded by the Registered Agent (acting under the authority of the Council) in Schedule 1 to these Rules without the formalities otherwise required by the above for a variation to these Rules.

The signatures of the parties are situated after the Schedule to these Rules.

These Rules have been approved by the Founder and the Registered Agent on ^{05 July 2024}

SCHEDULE 1

Dedication of Assets to the Foundation

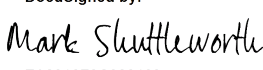
A cash endowment of £10,000.

SIGNATORIES

APPROVED and SIGNED by

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)
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By:

DocuSigned by:

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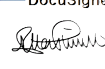
Name: Mark Richard Shuttleworth

Position: Founder

**APPROVED and SIGNED by OCORIAN
TRUST (ISLE OF MAN) LIMITED**

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By:

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962122DE80264E1

Name: Ella Pinnock

Position: Director

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By:

DocuSigned by:

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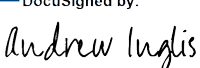
Name: Rory Farren

Position: Director

APPROVED and SIGNED by

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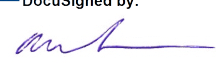
Name: Andrew James Inglis

Position: Council Member

APPROVED and SIGNED by

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By:

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Name: Malcolm Couch

Position: Council Member